

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Gross	Team: Team # 6	CCRB Case #: 200913367	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 08/26/2009 11:30 PM	Location of Incident: West 28th Street between 10th and 11th Avenues	18 Mo. SOL 2/26/2011	Precinct: 10
Date/Time CV Reported Thu, 08/27/2009 1:30 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/27/2009 1:30 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Fontana	03556	931673	010 PCT
2. POM Scott Williams	22012	943959	010 PCT
3. Officers			010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Duane Percy	07052	944884	010 PCT
2. POF Nicole Rowe	07193	944955	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Vincent Fontana	Discourtesy: Sergeant Vincent Fontana spoke obscenely to § 87(2)(b)	A . Unsubstantiated
B . Officers	Abuse: Officers frisked § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Scott Williams	Abuse: Officer Scott Williams searched § 87(2)(b)	C . Exonerated
D . SGT Vincent Fontana	Abuse: Sergeant Vincent Fontana searched § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . Officers	Abuse: Officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . SGT Vincent Fontana	Abuse: Sergeant Vincent Fontana refused to provide his name and shield number to § 87(2)(b)	F . Unsubstantiated

Case Summary

On August 27, 2009, § 87(2)(b) filed this complaint on the CCRB's automated call processing system on behalf of himself and his friends § 87(2)(b) and § 87(2)(b) [Enc. 9A-B]. On August 26, 2009, at approximately 11:30pm, § 87(2)(b) and § 87(2)(b) were stopped by Sergeant Vincent Fontana and Officer Scott Williams of the 10th Precinct for drinking champagne within and outside of § 87(2)(b)'s vehicle which was parked on West 28th Street between 10th and 11th Avenue in Manhattan. Officer Duane Percy and Officer Nicole Rowe also eventually responded to the scene. The following allegations resulted:

- **Allegation A) Sergeant Vincent Fontana spoke obscenely to § 87(2)(b) § 87(2)(g)**
§ 87(2)(b) it is recommended that **allegation A be closed as unsubstantiated.**
- **Allegation B) Officers frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b) It is therefore recommended that **allegation B be closed as exonerated.**
- **Allegation C) Officer Scott Williams searched § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b) It is therefore recommended that **allegation C be closed as exonerated.**
- **Allegation D) Sergeant Vincent Fontana searched § 87(2)(b) and § 87(2)(b)** Due to conflicting testimony, it is recommended that **allegation D closed as unsubstantiated.**
- **Allegation E) Officers searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants: § 87(2)(g)**
§ 87(2)(g)
§ 87(2)(g) it is recommended that **allegation E be closed as exonerated.**
- **Allegation F) Sergeant Vincent Fontana refused to provide § 87(2)(b) with his name and badge number: § 87(2)(g)** it is recommended that **allegation F be closed as unsubstantiated.**

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b) [Enc. 9A-B, 10A-F]

- § 87(2)(b) is a § 87(2)(b)-old black male who § 87(2)(b). He has black hair and brown eyes. § 87(2)(b)

On August 27, 2009, § 87(2)(b) filed this complaint on the automated call processing system [Enc. 9A-B]. In the brief narrative he left, § 87(2)(b) stated that he was "searched" due to an open container and that an officer refused to provide him with his name and badge number. While he provided little context concerning the

incident, he stated that Officer Williams “handled himself with professionalism and courtesy”, detailing that the crux of his complaint was directed towards Sergeant Fontana and Officer Percy for acting unprofessionally. On October 8, 2009, § 87(2)(b) was interviewed at the CCRB [Enc. 10A-F]. His statements were consistent with the brief narrative he provided on the call processing system and are summarized below.

On the evening of August 26, 2009, § 87(2)(b) and § 87(2)(b) drove from Brooklyn into the meat packing district of Manhattan in order to patronize a nightclub called “Suzy Wong’s.” The three have been lifelong friends. § 87(2)(b) was driving § 87(2)(b)’s green Lincoln Navigator, dressed in blue jeans and a button-down dress shirt. When they arrived in front of the club, located at West 28th Street and 11th Avenue, they were told by the doorman to come back in an hour because they had not yet opened for customers. The three went back to the vehicle, and decided then to drive to a liquor store close to Madison Square Garden in order to procure some alcohol to drink before entering the club. They purchased one bottle of champagne and one bottle of Hennessy cognac, and drove back to the area of the club. They parked on West 28th Street between 10th and 11th Avenues at approximately 11:30pm. After they parked the car, they opened the bottle of champagne and began to have some drinks out of Styrofoam cups. § 87(2)(b) was standing outside of the vehicle while § 87(2)(b) and § 87(2)(b) remained seated inside. At this point, the vehicle was parked and the ignition was off.

After approximately 5 minutes, § 87(2)(b) noticed a marked RMP driving towards them, containing Sergeant Vincent Fontana (described as white male, 6’0”-6’1”, in his 40s, medium build, bald head) and Officer Scott Williams (white male, 6’2”-6’3”, medium build, shaved bald head). § 87(2)(b) later identified these officers as he observed their names off their respective name plates. Sergeant Fontana and Officer Williams approached the vehicle and ordered § 87(2)(b) and § 87(2)(b) to step out. Sergeant Fontana then ordered the three men to get up against a nearby wall. All three individuals immediately complied. Once he got to the wall, Sergeant Fontana frisked § 87(2)(b) patting him down over his front and back pants’ pockets. During the frisk, Sergeant Fontana was being “aggressive”, and § 87(2)(b) complained that Sergeant Fontana grabbed his genitals over his pants and shook his crotch area of his pants. After the frisk, Sergeant Fontana proceeded to reach inside § 87(2)(b)’s right and left front pockets. Sergeant Fontana did not ask § 87(2)(b) questions about the contents of his pockets before reaching inside. § 87(2)(b) had his cell phone and his identification in his front pocket. He had no belongings in his back pockets and did not have anything strapped onto his belt line. Sergeant Fontana removed § 87(2)(b)’s cell phone and identification from his front pockets, examined them, and then placed them back into § 87(2)(b)’s pockets. § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) were also frisked while standing against the wall, but he wasn’t sure which officers were involved in those frisks.

After the frisk, one of the officers poured out the contents of each of the individuals’ cups onto the street. Officer Williams requested the individual’s identifications and went back towards the RMP, apparently to issue summonses. Soon after the frisks had concluded, approximately 10 additional uniformed officers arrived at the scene, including a marked van that contained two officers, identified by the CCRB as Officer Duane Percy and Officer Nicole Rowe of the 10th Precinct. Officer Percy got into a “staring contest” with § 87(2)(b) which prompted § 87(2)(b) and Officer Percy to argue. Officer Percy told § 87(2)(b) during the argument, “Oh, I’m used to you fucking guys coming down here doing shit like this.” § 87(2)(b) remained upset and “was letting [Officer Percy] know how he felt about the situation, but stated that he was not yelling or directing profanity at Officer Percy during the incident.

Eventually, Sergeant Fontana returned and issued summonses to all three individuals for open containers. At the conclusion of the incident, § 87(2)(b) requested Sergeant Fontana and Officer Williams’ name and badge numbers by stating, “What’s your name and your badge number?” Officer Williams responded with the information, but Sergeant Fontana responded, “Read it right here” (referring to his badge) and did not verbally provide his name or badge number. § 87(2)(b) did not ask Officer Percy for his name and badge number but was able to read it off his badge plate. § 87(2)(b) paid the \$25 fine for the summons and does not dispute the fact that he was drinking from an open container when stopped by the police

Victim: § 87(2)(b) [Enc. 11A-E]

- § 87(2)(b) is a § 87(2)(b)-old black male who § 87(2)(b). He has brown hair and brown eyes. § 87(2)(b)

On October 15, 2009, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b)'s statements were not completely consistent with those of § 87(2)(b) and he made additional allegations against the officers not mentioned by § 87(2)(b). § 87(2)(b)'s description of the lead up to the incident was identical to § 87(2)(b)'s narrative. § 87(2)(b) also indicated that he was dressed in "club attire"; wearing a short sleeve white button down shirt, grey corduroy pants and dress shoes. When stopped, § 87(2)(b) and § 87(2)(b) had been seated in the car and § 87(2)(b) had been outside of the car, "fixing his pants". § 87(2)(b) was frisked by Officer Williams, whom he had observed operating the RMP. He described Officer Williams as a white male, approximately 6'1" feet tall, with a slim build and short brown hair. He described the second officer at the scene as shorter than Officer Williams with a "chubby build", also with brown hair. § 87(2)(b) disclaimed that he could possibly be mis-remembering the officers' names, as he only recalled Officer Williams' name which was written on his summons. However, his physical descriptions allowed the CCRB to identify Sergeant Fontana and Officer Williams' alleged roles in the incident.

When Officer Williams approached § 87(2)(b) to frisk him he stated, "Don't worry, this is what we do to make sure the streets are safe." § 87(2)(b) asked Officer Williams why he was being asked to step up against the wall and he responded, "Don't worry, if you don't have anything on you this shouldn't be a problem." Officer Williams frisked § 87(2)(b) from head to toe, running his hands over § 87(2)(b)'s pants pockets, putting his finger inside one of § 87(2)(b)'s shoes and lifting his shirt to inspect his waistline. Officer Williams did not reach into § 87(2)(b)'s pockets. In his pockets, § 87(2)(b) had his wallet and house keys. He had his blackberry cell phone strapped to a phone holster on his waist line. While Officer Williams was patting him down, he asked § 87(2)(b) "What's you're reasoning for being out here?" and "Where are you from?" § 87(2)(b) informed him that he was from Brooklyn and that three had come to patronize a nearby night club. Simultaneously, § 87(2)(b) and § 87(2)(b) were also frisked, although § 87(2)(b) could not see specifically what happened to them. § 87(2)(b) was unsure which officers were responsible for frisking his friends, although while he was in the "frisk position" he heard § 87(2)(b) call out, "Oh, what are you doing? This guy's touching my balls! I have nothing on me I told you!"

§ 87(2)(b) alleged that his vehicle was searched at the conclusion of his frisk. Almost immediately after § 87(2)(b)'s frisk had concluded, a second RMP arrived at the scene containing PO3 (white male, 5'8" feet tall, muscular build, low cut brown hair) and PO4 (Hispanic male, jet black hair, 5'8"-5'9"). Two officers, Officer Williams and possibly one of the second males who arrived at the scene, began searching the vehicle. No officer asked for consent to search his vehicle before searching the vehicle. He observed the officers searching the entire interior, including under the seats, and in all the compartments of the vehicle. § 87(2)(b) specifically recalled some CD cases he had inside of his glove compartment (on the passenger side) being moved around. § 87(2)(b)'s book bag (a black north face backpack) which he had placed on the back seat was also opened and searched. During the search, the officers found both the bottle of open champagne and a small unopened bottle of Hennessy. Officer Williams then cracked open the bottle of Hennessy and poured the contents out onto the sidewalk. He also poured out the contents of the champagne bottle.

Officer Percy and Officer Rowe arrived towards the end of the incident. § 87(2)(b) corroborated that Officer Percy got into a "starting contest" with § 87(2)(b). However, § 87(2)(b) did not indicate that he heard Officer Percy use any discourteous language during the incident. The officers eventually informed them that they would be issued summonses for an open container. While receiving his summons, § 87(2)(b) stated that asked for Officer Williams' name before the officers left, stating "Can I have you're badge number and name?" Officer Williams replied, "My name is on the summons", before leaving the scene without verbally providing his name to § 87(2)(b).

Victim: § 87(2)(b) [Enc. 12A-E]

- § 87(2)(b) is a § 87(2)(b)-old black male who § 87(2)(b). He has black hair and brown eyes.

On October 26, 2010, § 87(2)(b) was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(b) like § 87(2)(b) identified the officer whom he felt was taking the “main role” in the incident as “Officer Fontana” (he read name read off his badge plate), describing him as white male, bald head, 6’2”-6’3”, with no facial hair. He did not get as good a look at the second male, describing him as a male, possibly of Asian descent, and 5’9” feet tall. § 87(2)(b) attributed the use of discourteous language Sergeant Fontana. He alleged that Sergeant Fontana told the three individuals, “Get up against the fucking wall.” The three complied, and Sergeant Fontana stated, “Oh, I’m used to fucking guys like you coming around here and doing shit like this.” § 87(2)(b) asked, “What did we do?” to which Sergeant Fontana responded “Watch your fucking mouth.”

Sergeant Fontana then frisked up and down each of § 87(2)(b) s legs and tapped his crotch area with his hand in a rough manner that alarmed § 87(2)(b) § 87(2)(b) elaborated that the initial frisk was “rough and aggressive.” Sergeant Fontana then reached into all of § 87(2)(b) s jean pockets, and removed § 87(2)(b) s belongings from his pockets briefly § 87(2)(b) had his cell phone, his keys, and his wallet), before placing them back in their respective pockets. § 87(2)(b) did not have anything strapped to his waistband during the incident. § 87(2)(b) stated that Sergeant Fontana definitely frisked and searched him, but he wasn’t completely sure which officer was engaged with § 87(2)(b) and § 87(2)(b) He believed that Sergeant Fontana searched § 87(2)(b) and Officer Williams searched § 87(2)(b)

§ 87(2)(b) also alleged that the vehicle was searched, and his descriptions of the zones of the vehicle that were searched were consistent with § 87(2)(b) s statements. § 87(2)(b) detailed that he did not hear Officer Percy use any discourteous language during the incident, explaining that Sergeant Fontana was responsible for all of the discourteous language. § 87(2)(b) explained that he and his friends were upset by the way they had been treated during the incident, and let the officers know that they did not appreciate their behavior.

NYPD Statements:

Subject Officer: OFFICER SCOTT WILLIAMS

- Officer Williams is a § 87(2)(b) -old white male who § 87(2)(b) He has brown hair (shaven bald at the time of his interview) and green eyes.
- On August 26, 2009, Officer Williams worked from 10:00pm to 6:35am and was assigned to be the Cabaret Sergeant’s operator. He was dressed in uniform, working with Sergeant Fontana, and was operating RMP 1316.

Memo Book [Enc. 18A-B]

2323- 3 males stopped West 28th Street between 9th – 10th Avenue. Drinking Korvel wine, 12% alcohol by volume from clear glass wine glasses. [Three summonses issued] Sprint 16280, UF-250 [criminal possession of a weapon].

Handwritten UF-250 Reports [Enc. 14A-B, 15A-B, 16A-B, 17A-F]

Officer Williams completed three UF-250 reports in regards to this incident. All three reports were very similar. The circumstances leading to the stop were all noted as “furtive movements.” Additional factors leading to the stop are noted as “area has high incidence of reported offense”, “time of day, day of week, season corresponding to reports of criminal activity” and “evasive, false, or inconsistent responses to officer’s questions.” All three reports list the individuals as acting “hostile” and “uncooperative” during the stop and note that all three individuals were only stopped and frisked during the stop (not searched). The force used was described as “hands on suspect.” The only differentiating facet from the three reports was that § 87(2)(b) was noted as having a “bulge”, which was clarified as being a “cell phone case on right hip.” Bulges are not delineated on any of the other reports.

CCRB Statement [Enc. 19A-C]

On December 11, 2009, Officer Williams was interviewed at the CCRB. On the evening of August 26, 2009, Officer Williams was driving from 10th Avenue eastbound on West 28th Street when from within the car, they observed three black males standing “in and around” an SUV drinking from clear champagne glasses what appeared to be a pinkish-yellow liquid. The observance was a chance encounter, as the officers had not received a report of a crime at this particular location. Officer Williams pulled the vehicle over next to the vehicle to investigate what the three individuals were drinking. The engine and radio of the vehicle were off and the vehicle was parked. Officer Williams could not recall the exact positions of each individual during the initial stop, but he explained that the door of the vehicle was open and at least one of them was inside when the officers first pulled up. Once they were stopped, Officer Williams observed the bottle of Korvel wine in plain sight sitting inside of the front of the vehicle.

The officers immediately asked all the individuals to step out of the vehicle. The three complied and walked to the rear of the vehicle. Officer Williams described the individuals’ demeanor as “hostile” and explained that they remained uncooperative throughout the remainder of the incident. When asked to elaborate, Officer Williams could not recall exactly what the individuals were doing but explained that it was “a very uncooperative stop.” He explained that when given directives like “step over to the side of the car” and “turn around”, “stop moving” and “keep your hands out of your pockets”, and they were all met with uncooperative and sometimes confrontational responses from the three individuals. He could not recall exactly how the individuals responded but explained that it was something to the effect of “Why do we have to do this?” Officer Williams could not recall if any of the individuals had their voice raised or were yelling at the officers during the stop. Officer Williams could not recall if Sergeant Fontana radioed for back up, but other units stopped as they observed the police activity on a busy block. He could not recall at which point during the stop when additional units arrived. Officer Williams denied using profanity during the incident. He denied saying “Watch your fucking mouth” or “Get on the fucking wall”. Officer Williams denied referring to the group as “you fucking guys.”

At the rear of the vehicle, all three individuals were frisked. Officer Williams described the frisks as cursory and for the officers’ safety to “make sure there weren’t any weapons on them.” Officer Williams believed that he frisked all three individuals, but he could not recall if Sergeant Fontana conducted any frisks. When asked to elaborate on why the individuals were frisked, Officer Williams explained that they had observed a violation taking place which is an arrestable offense if the individuals do not have identification. Officer Williams patted down the waistline of all three individuals. He also observed bulges on the waistband of several of the individuals’ waistband (which when frisked turned out to be cell phone holders). When he frisked the bulge, the bulge felt hard and Officer Williams was unsure of what it was. When asked to explain what those bulges appeared to be, he remained vague in his response and referred back to the circumstances of the stop explaining, “because of the uncooperative nature of the three individuals, and because they were going to be issued summonses, we wanted to make sure that nothing else was going on.” During the frisk, he grabbed the cell phone, which felt like a hard object. He asked the individual, determined by the CCRB to be § 87(2)(b) about the nature of the object, but could not recall § 87(2)(b)’s response. He acknowledged that he likely lifted up one of the individual’s shirts after the frisk to observe the cell phone. Officer Williams believed all three individuals had cell phones on their waists but was unsure and he could not elaborate on which individual shirt he possibly lifted. He explained “I remember observing bulges on waistlines. I couldn’t recall whose or how many bulges I observed.” Officer Williams did not recall reaching into any individual’s pockets. Officer Williams denied sticking his finger into any of the individual’s shoes or socks during the frisk.

After the frisks, Officer Williams visually inspected the “open areas” of the vehicles (seats, dashboard, and floor). The bottle of Korvel was inside of the vehicle (on the floor by the front seat of the vehicle). The bottle had been opened. Officer Williams could not recall how the bottle was recovered from inside of the vehicle. He did not remember what happened to the remaining contents of that bottle. Officer Williams explained that he never entered the vehicle to search the vehicle. He denied opening any compartments of the vehicle or observing Sergeant Fontana doing so. He did not believe that the rear area of the vehicle was searched. He could not recall observing or searching a backpack on the rear seat of the vehicle. He did not

remember opening the trunk of the vehicle. Officer Williams did not observe any officer at the scene entering the vehicle. Officer Williams believed that the bottle of champagne was the only alcohol recovered from the vehicle. He could not recall observing a bottle of Hennessy inside. Officer Williams denied opening a sealed bottle of Hennessy and pouring its contents out onto the street during the incident.

After the frisk, Officer Williams asked all the individuals to provide identification. He explained that he asked “several times” before the individuals handed over their IDs. Officer Williams returned to his vehicle and wrote three summonses for open containers and ran their names to see if any of them had any open warrants. Officer Williams was inside of the RMP while he was writing the summons. Sergeant Fontana remained outside with the three individuals. Officer Williams also completed UF-250 stop-and-frisk reports for all three individuals. The summonses were then served for an open container of alcohol. Officer Williams explained that all three individuals remained relatively uncooperative throughout the entire incident. Officer Williams could not recall whether or not any individual asked for his name or badge number during the incident.

SUBJECT OFFICER: SERGEANT VINCENT FONTANA, 10th PRECINCT

- *Sergeant Fontana is a § 87(2)(b) -old white male who § 87(2)(b). He is bald and has blue eyes.*
- *On August 26, 2009, Sergeant Fontana worked from 10:00pm to 7:00am and was assigned to be the cabaret Sergeant. He was dressed in uniform, and was working with Officer Williams inside RMP #1316.*

Memo Book [Enc. 20]

2320 – 3 males stopped 28th Street 9-10 Avenue

2340 – 96 X 3 SPRINT W16286

CCRB Statement [Enc. 21A-C]

On December 17, 2009, Sergeant Fontana was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(g) He verified that as they drove up, they observed three black males “in and around” the vehicle. Sergeant Fontana described the area where the incident occurred as a heavily trafficked area in the vicinity of several popular nightclubs, which is particularly prone to car break-ins. He elaborated that the street is long and poorly lit, and many people park expensive vehicles on the block due to the proximity to the upscale night clubs. When they initially approached, Sergeant Fontana did not know what the three males’ relationship with the vehicle was and the officers found the behavior of moving in and out of the vehicle to be suspicious. As they drove closer, Sergeant Fontana observed one of the three males throw something into the interior of the vehicle. Sergeant Fontana motioned with his hand and indicated verbally that it appeared that the individual “flicked” something into the vehicle as several of the doors, and possibly several of the windows were ajar during the stop. Sergeant Fontana could not recall if the vehicle’s engine was on or whether there were any interior lights on inside during the initial stop. Sergeant Fontana could not recall if he saw anything inside of the hands of the individuals and he could not describe the object that was flicked inside of the vehicle. He could not recall how many individuals he observed doing this movement. Sergeant Fontana explained that the RMP had been approximately one car length from the SUV when he observed this movement. The motion was “just into the car” and from his angle he couldn’t tell whether the motion was directed to the front or the back of the vehicle. Sergeant Fontana thought that the object that was thrown into the vehicle “might have been a gun.”

Officer Williams stopped the car and approached the individuals. Now outside, Sergeant Fontana could see into the vehicle where he observed what appeared to be a bottle of champagne and several glasses. The officers immediately directed the three individuals to “turn away” and face the wall. Sergeant Fontana could not recall having any conversation with the individuals before the frisks occurred. Sergeant Fontana could not recall the individuals providing evasive or false answers during the initial stop. Sergeant Fontana explained that the individuals were facing the wall (facing away from the car), and were not physically up against the wall during the frisk. The sidewalk is approximately 15 feet wide and the individuals were standing about 5 feet from their vehicle and 10 feet from the building line during the frisk. All three individuals were frisked due to the furtive

movement of the individual that threw something into the vehicle. The officers wanted to do a cursory frisk of the individuals to ensure that they did not have any weapons on them. Officer Williams was the individual responsible for frisking all three individuals. While he frisked them, Sergeant Fontana stood back and tactically observed the Officer Williams three individuals to ensure his partner's safety. Sergeant Fontana observed Officer Williams frisking the waist and chest area of the three individuals while they faced away from him. Sergeant Fontana was standing directly behind the individuals when the frisk occurred and had clear sight of the frisks. He could not recall observing any bulges on any of the individuals. Sergeant Fontana did not observe Officer Williams reach into any of the individuals' pockets or search any of the individuals during the incident. Sergeant Fontana did not search any of the individuals, as he did not conduct any of the frisks.

Sergeant Fontana's descriptions of the demeanors of the individuals' was more specific than Officer Williams' testimony. Sergeant Fontana explained that two of the individuals were cooperative. The third was "very belligerent", and "absolutely irate." The individual was cursing at the officers and angry that they "were wasting his time." This happened not during the frisk, but after the frisk, while Officer Williams was writing the summonses.

Sergeant Fontana testified that he entered the vehicle to retrieve the bottle of champagne. He removed the bottle of champagne and several glasses (several which contained a liquid that appeared to be champagne). Sergeant Fontana did not observe any other object that drew his attention inside of the vehicle. Besides retrieving the bottle, Sergeant Fontana denied otherwise searching the vehicle. He denied searching a back pack which was located on the backseat of the vehicle. Sergeant Fontana stated that although he observed something being thrown into the car, no "grabable area" search of the vehicle was conducted. Like Officer Williams, Sergeant Fontana could not recall any additional bottles of alcohol recovered beside the bottle of champagne, and does not recall any bottles being opened and poured out.

Sergeant Fontana denied using discourteous language during the incident. He denied saying "Watch your fucking mouth" or "Get on the fucking wall." He denied saying, "Oh you fucking guys always come around here doing this shit." Sergeant Fontana denied using the word "fuck" in any context. Like Officer Williams, Sergeant Fontana could not recall whether or not an individual asked him for his name and shield number after the conclusion of the incident. He explained that if someone asked him for his name and shield, he would clearly provide them with that information as he has "nothing to hide."

Witness Officer: OFFICER DUANE PERCY, 10th PRECINCT

- *Officer Percy is a § 87(2)(b) -old mixed race (light skinned) male who § 87(2)(b). He has black hair and brown eyes.*
- *On August 26, 2009, Officer Percy worked from 10:00pm –6:35am, and was assigned to the cabaret auto. He was dressed in uniform, working with Officer Rowe, and assigned to RMP 5602, a marked van.*

Memo Book [Enc. 22]

No entries regarding incident.

CCRB Statement [Enc. 22A-B]

On January 15, 2010, Officer Percy was interviewed at the CCRB. Officer Percy did not have any recollection of the incident. Referencing his memo book, Officer Percy stated that the only point he interacted with Sergeant Fontana was during roll call. He did not recognize the complainant § 87(2)(b) when presented with a photograph. He did not recall interacting with Sergeant Fontana, the cabaret unit supervisor, or Officer Williams, during the tour. He did not recall seeing Sergeant Fontana or Officer Williams participate in a vehicle search. Officer Percy did not remember directing discourteous language at anyone or interacting with anyone that night. As having a mixed racial background himself, Officer Percy expressed displeasure that he would be accused of using such a phrase as "you fucking guys" which he interpreted as having obvious racial undertones.

Officer Interview but Not Summarized

On February 19, 2010, Officer Nicole Rowe, a § 87(2)(b)-old white female who § 87(2)(b) was interviewed at the CCRB [Enc. 24A-C, 25A-B]. Officer Rowe was working with Officer Percy during the incident date in question, but had no recollection of the incident and had no memo book entries regarding the incident. As such, her interview will not be summarized.

NYPD Documents

- The SPRINT print out generated from this incident [Enc. 26] indicates that at 11:20pm, the unit of Sergeant Fontana and Officer Williams radioed that they had “two males” stopped on West 28th Street between 9th and 10th Avenue. The job was closed at 11:41pm as “10-96 [summons served].” The print-out does not detail any additional units arriving at the location.

Summonses [Enc. 13A-B]

- § 87(2)(b) and § 87(2)(b) all acknowledged that they were drinking out of open containers and stated that they intended on pleading guilty and paying the \$25 dollar fine.

Status of Civil Proceedings [Enc. 32A]

- As of March 22, 2010, none of the complainants in this case has filed a Notice of Claim with the City of New York with regard to the incident.

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) [Enc. 6, 7, 8].

Subject Officers CCRB History

- Officer Williams has been a member of the service for 3 years and there are no substantiated CCRB allegations against him [Enc. 5]
- Sergeant Fontana has been a member of service for 7 years and there are 2 substantiated CCRB allegations against him. In case 200507325, Sergeant Fontana was found to have improperly stopped and searched an individual. He received an “A” command discipline as a result [Enc. 4A-B].

Conclusion

Identification of Subject Officers

Both Officer Williams and Sergeant Fontana verified their involvement in this incident during their interviews. Officer Williams and Sergeant Fontana have very similar pedigrees: they are both tall white males with shaved heads. However, Officer Williams is taller and more physically fit than Sergeant Fontana. All the of the complainants were able to identify the officers’ roles in this incident based on their names which they all indicated they read of the officers’ name plates during the incident. This, in combination with the complainant’s physical descriptions, allowed the investigation to assign the allegations as follows:

- § 87(2)(b) indicated Sergeant Fontana cursed at him during the incident. § 87(2)(b) verified hearing the phrase, “Oh, I’m used to fucking guys like you coming around here and doing shit like this”, but attributed the discourtesy to Officer Percy. § 87(2)(g)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- and § 87(2)(b) who were both interviewed after § 87(2)(b) were specifically asked if they heard

Officer Percy curse during the incident. Both individuals testified that they did not hear Officer Percy use discourteous language. § 87(2)(g)

- § 87(2)(g)
- § 87(2)(b) indicated that Officer Williams frisked him and lifted up his shirt during the frisk. § 87(2)(g)
- § 87(2)(b) and § 87(2)(b) both indicated that Sergeant Fontana searched them during the incident. § 87(2)(g)
- § 87(2)(b) alleged that Sergeant Fontana refused to provide him with his name and badge number. § 87(2)(g)

Allegation Not Pledged:

- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A) Sergeant Vincent Fontana spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that Sergeant Fontana spoke discourteously throughout the incident. All of the officers interviewed denied using or hearing discourteous language during the incident. § 87(2)(g)

It is therefore recommended that *allegation A be closed as unsubstantiated.*

Allegation B) Officers frisked § 87(2)(b) and § 87(2)(b)

It is undisputed that all three individuals were frisked during this incident. The officers' testified that Officer Williams frisked all three individuals while Sergeant Fontana stood behind him and tactically observed the frisks. Officer Williams completed all three UF-250 stop-and-frisk reports, which were practically identical beyond noting a "bulge – cell phone case right hip" on § 87(2)(b)'s report. § 87(2)(g)

§ 87(2)(b) was consistent in his allegation that he was frisked by Sergeant Fontana during both his initial intake call and CCRB interview, and § 87(2)(b) also identified Sergeant Fontana as the individual who conducted his frisk. § 87(2)(g)

§ 87(2)(g)

According to Kamins, New York Search and Seizure §2.05[3]c, stops predicated merely on violations or traffic infractions are not sufficient to justify a frisk without reasonable suspicion that an individual is in possession of a weapon [Enc. 1F]. § 87(2)(g)

It is therefore recommended that *allegation B be closed as exonerated.*

Allegation C) Officer Scott Williams searched § 87(2)(b)

§ 87(2)(b) alleged during his frisk, Officer Williams lifted his shirt up to observe his waistline and also stuck his finger inside of his shoe. According to *New York v. Calizaire* [Enc. 2A-B], the action of lifting up ones shirt is classified as a search as it goes beyond the permissible scope of a protective pat-down. Officer Williams acknowledged that he lifted § 87(2)(b)'s shirt to inspect the bulge after frisking it and feeling a hard object, but denied sticking his finger in § 87(2)(b)'s shoe. § 87(2)(g)

This observation also appears to be documented on § 87(2)(b)'s (not § 87(2)(b)'s) UF-250 report. § 87(2)(g)

According to Kamins, New York Search and Seizure § 2.05[2]e, bulges located on a waist band are often held in higher suspicion than those in other locations, such as pockets [Enc. 1E]. § 87(2)(g)

Kamins, New York Search and Seizure § 2.05 [1] notes, “An officer may seize an object [conduct a search] if he reasonably believes it to be a weapon.” In certain circumstances, a limited search can be conducted, “...if an officer cannot legitimately determine whether a hard object is a weapon, [an officer] may reach in to

determine the nature of the object, pull the object out, or ask the suspect to identify the object” [Enc. 1B].

§ 87(2)(g)

It is therefore recommended that *allegation C be closed as exonerated.*

Allegation D) Sergeant Vincent Fontana searched § 87(2)(b) and § 87(2)(b)

Sergeant Fontana denied frisking and searching any of the three individuals during the incident, indicating that he stood behind Officer Williams during the frisks in order to tactically observe them taking place. § 87(2)(g)

Based on the aforementioned, it is recommended that *allegation D be closed as unsubstantiated.*

Allegation E) Officers searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that an opened bottle of champagne was sitting on the floor inside the car next to one of the front seats of the vehicle. It is also undisputed that the door of the vehicle was opened during the initial stop, placing the bottle in plain view from outside of the vehicle. § 87(2)(b) did not mention the vehicle search in his testimony; however, both § 87(2)(b) and § 87(2)(b) provided consistent accounts of how and where the vehicle was allegedly searched. Conversely, both Officer Williams and Sergeant Fontana denied searching the vehicle. § 87(2)(g)

Officer Williams denied ever entering the vehicle or seeing any other officers enter the vehicle, an unlikely scenario as the bottle of champagne was clearly removed from within the vehicle by the officers. Sergeant Fontana verified that he entered the front area of the vehicle to remove the bottle, although he denied otherwise searching the vehicle. § 87(2)(g)

Kamins, New York Search and Seizure §5.05[2]
details that, “If an officer detects the odor of alcoholic beverages emanating from the vehicle and observes a cup

observes a cup of alcohol in plain view, the officer would have probable cause to search for additional open containers...” [Enc. 1H-I]. § 87(2)(g)

it is recommended that ***allegation E be closed as exonerated.***

Allegation F) Sergeant Fontana refused to provide § 87(2)(b) with his name and badge number:

§ 87(2)(b) like § 87(2)(b) and § 87(2)(b) was able to read the officers’ names of their badge plates during the incident and he provided Sergeant Fontana’s name as “Officer Fontana.” § 87(2)(b) alleged that an officer refused to provide his name and badge during his initial intake call, although he did not specify which officer until his CCRB interview. § 87(2)(b) alleged that at the conclusion of the incident, he asked Sergeant Fontana for his name and badge number. Sergeant Fontana allegedly replied, “Read it right here” and did not vocally provide this information to § 87(2)(b). Sergeant Fontana denied ever hearing any individual request his name or badge number during the incident, explaining that he would have provided such information if requested. No other party testified to hearing § 87(2)(b) request this information from Sergeant Fontana at the conclusion of the interview. § 87(2)(g)

It is therefore recommended that ***allegation F be closed as unsubstantiated.***

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date